

Terms & conditions

LITURGIA – TERMS AND CONDITIONS

1 Introductions and Definitions

1.1 These general terms and conditions apply between Liturgy Brisbane and subscribers to the electronic software *Liturgia*.

1.2 The 'subscriber' may be defined as the organisation who has purchased a licence to use *Liturgia*, or the staff members of that organisation, or to persons who have purchased an individual licence to use *Liturgia*.

1.3 The subscriber confirms that it understands and agrees to be bound by these terms and conditions with respect to the downloading, installation and use of the software.

1.4 *Liturgia* operates as a site licence for up to five (5) computers. A 'site' is defined by and tied to the name of the parish or school and must not extend beyond members of their organisation.

1.5 Where a parish and a school are situated on the same grounds, this is considered to be two separate sites requiring two separate licences. For much larger institutions, such as universities, a site is defined as one department on a single campus.

2 Grant of Licence

2.1 The subscriber obtains a non-exclusive right to use the program for the period of the licence. The *Liturgia* Materials are licensed to the user, not sold.

2.2 At the expiration of the licence term, and in the absence of payment of a subscription renewal fee, Liturgy Brisbane reserves the right to cancel the licence and terminate access to *Liturgia*.

2.3 Where a licence has lapsed, it can be immediately reinstated with the same username and password on payment of all outstanding subscription fees.

3 Licence Fee

3.1 The licence to use *Liturgia* is conditional upon the customer having paid the required licence fee which is currently listed as \$250 for a 1 year subscription or \$660 for a 3 year subscription. This licence fee allows the subscriber to install *Liturgia* on up to five (5) computers at their site. The licence fee is exclusive of GST.

3.2 In the case of large institutions where *Liturgia* is to be installed on more than five (5) computers, Liturgy Brisbane will liaise directly with those organisations to arrange a personalised licence agreement

3.3 Where a diocese purchases *Liturgia* for every parish or every school in their diocese, a discounted fee will be offered by negotiation with Liturgy Brisbane.

4 Scope of the Licence

4.1 The customer may use, access, display, print or otherwise make use of the content in *Liturgia* on up to five (5) computers at their site. *Liturgia* operates as a site licence which is tied to the name of a particular parish or school. In cases where two parishes are administered by one office, two separate licenses are required to cover copyright obligations.

4.2 In the case of a school which subscribes to *Liturgia* where the program is installed on up to 5 computers, some of which are staff laptops, those laptops may be used by staff members at home for the purposes of school liturgy preparation even though that computer has left the geographical site for which the licence has been issued.

4.3 If a parish subscribes to *Liturgia* and has the situation where a parish secretary does a significant amount of work for the parish from home, that parish secretary may install *Liturgia* on a personal laptop or home computer for the purposes of that parish work.

4.4 The site for which the licence is purchased should also be the site where any texts or liturgies prepared in *Liturgia* are displayed. For example, a teacher would use his/her school's site licence to prepare school liturgies or activities only. Using this licence to prepare Sunday liturgy for his/her parish church is NOT within the scope of the school's licence and constitutes a breach of copyright. In this case the parish must also have their own licence, since this is the site where the texts will be used or displayed.

4.5 Where primary schools and parishes are on the same grounds, each one MUST purchase a separate licence – one for the parish and one for the school – to fulfil legal copyright obligations.

4.6 A site may be defined as one parish or one school or one department of a larger institution. An individual licence holder may install the program on each of their personal devices.

4.7 The customer will ensure that their login details are not shared with any other person and acknowledges that to do so is a serious breach of copyright.

5 Copyright

5.1 Having a *Liturgia* licence does not remove the need to include correct copyright citations for texts or lyrics which are displayed on projection screens or printed in booklets created with *Liturgia*.

5.2 A school licence entitles up to 5 teachers at that school to prepare school liturgies or activities only for that school. A parish licence entitles up to 5 parish staff to use *Liturgia* for the purposes of liturgy preparation in that parish. Individual subscribers may use the information and resources contained in *Liturgia* for their personal, research or scholastic use. However, all use made of the data retrieved must be in compliance with state and federal copyright laws. For further information about copyright laws, see <https://www.liturgybrisbane.net.au/learn/copyright-portal/>.

5.3 Subscribers may not resell the data or retrieve and use it for the purposes of preparing a database or other electronic or magnetic compilation of such materials, whether or not rearranged in sequence or subject.

5.4 Subscribers must use their best efforts to protect the materials from unauthorized reproduction, distribution, disclosure, use or publication.

5.5. A license to Liturgia covers the user for copyright over the texts when using these in booklets or presentations, as long as the source is correctly cited.

5.6 Liturgia also gives users the ability to store hymn lyrics in their personal profile. Liturgy Brisbane takes no responsibility for copyright obligations when users store their own lyrics in Liturgia. These copyright obligations need to be fulfilled by the user through the usual channels.

5.7 Liturgy Brisbane gratefully acknowledges the music publishers that have provided us with permission to store one copy of their lyrics in our database for users to download into prepared liturgies. Users agree to copy these lyrics only if they have a OneLicense or CLLI licence and agree to report usage, under the terms of Australian copyright law and the terms and conditions of their agreement with OneLicense. Hymns which belong to the public domain are also included. Liturgy Brisbane invites publishers to contact us if they detect an omission or error to ensure that any issues are rectified.

5.8 Images of the Saints are produced from Wikipedia Commons under an open content licence.

6 System Requirements

6.1 *Liturgia* is a web-based platform which requires an internet connection. It operates on PCs and Mac computers, as well as Android tablets and iPads. On payment of the subscription fee, users will be able to set their own username and password to access the program. The login page provides the option to reset a password at any time if necessary.

7 Support

7.1 The program incorporates a number of helpful tips for planning a liturgy, which appear when hovering over xxx icons. It also includes a downloadable workbook which is invaluable for first time users of *Liturgia*. This workbook sets out the main features of the program and explains how to prepare, print or display a liturgy. It also explains how to access the wealth of content from the Liturgical Library and the Calendar. For questions which are not answered by these resources, customers are invited to contact Liturgy Brisbane at any time for assistance.

7.2 A subscription to *Liturgia* entitles the customer to unlimited support with regards to the operation of the program or the liturgical material contained therein. Customers can contact Liturgy Brisbane at any time on (07) 3324 3321 or via email: schwantesc@liturgybrisbane.net.au. All account related enquiries should be directed to orders@liturgybrisbane.net.au.

8 Subscription Terms

8.1 On an annual basis, subscribers will be invited to renew their subscription to *Liturgia* for the following year. On the basis that the subscription renewal is not paid, the licence will lapse and access to *Liturgia* will be switched off at the end of the annual period for which the subscription has been paid.

8.2 A lapsed subscription can be reinstated at any time on payment of the annual subscription fee.

8.3 For those who elect to pay their annual subscription in monthly installments, the subscription is locked in for one year with an obligation to make monthly payments for the duration of that yearly period. If a subscriber decides not to renew at the end of that year, the licence will be automatically cancelled.

8.4 Liturgy Brisbane may terminate a licence if a subscriber is found to have breached any of the terms and conditions contained in this document.